

25NWCV03798 25NWCV03798

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-20

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Case Number: 25NWCV03798 Hearing Date: August 20, 2026 Dept: R

#16

COOPER v. VOLKSWAGEN

GROUP OF AMERICA, INC.

CASE

NO.: 25NWCV03798

HEARING:

Thursday, August 20, 2026, at 9:30 AM

Plaintiff

JEANINE COOPER's Motion to Compel Defendant VOLKSWAGEN GROUP OF AMERICA's Further Responses to Request for Production of Documents, Set One Nos. 1-31 is CONTINUED to Thursday, September 17, 2026, at 9:30 AM in Dept. SE-R.

Moving party to give notice.

Background

On October 24, 2025,

Plaintiff JEANINE COOPER ("Plaintiff") filed this "lemon law" action against Defendants VOLKSWAGEN GROUP OF AMERICA, INC. ("Defendant") and DOES 1 through 10, inclusive.

Plaintiff's Complaint

asserts the following causes of action:

(1) Violation of Song-Beverly Act – Breach of Express Warranty;

(2) Violation of Song-Beverly Act – Breach of Implied Warranty

(3) Violation of Song-Beverly § 1793.2

Plaintiff now moves to Compel Defendant's Further Responses to Request for Production of Documents, Set One Nos. 1-31.

The Court is not persuaded that counsel have exhausted their meet and confer obligations pursuant to the Code. Counsel are advised that their meet and confer efforts should go beyond merely sending letters stating their respective positions. (See *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) "A determination of whether an attempt at informal resolution is adequate...involves the exercise of discretion. The level of effort at an informal resolution which satisfies the 'reasonable and good faith attempt' standard depends upon the circumstances. In a larger, more complex discovery request, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of the discovery requested, the prospects for success and other similar factors can be relevant. Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances." (*Obregon v. Sup. Ct.* (1998) 67 Cal.App.4th 424, 431.)

Counsel are ORDERED

to make further efforts to resolve the issues presented. If, after exhausting those efforts, court intervention is needed, counsel may appear and argue the merits on the continued hearing date. If counsel are unable to informally resolve their discovery disputes, then counsel are instructed to submit a JOINT STATEMENT outlining the remaining disputed issues for which a ruling is required.

The joint statement must be FILED on or before Friday, September 4, 2026.